

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL APPELLATE JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Aminul Islam

Death Reference No.118 OF 2017

The State

... Petitioner.

-Versus-

Md. Elias Ali

.....Condemned-prisoner.

with

Jail Appeal No.364 of 2017

Md. Elias Ali

.....Convict-appellant.

-Versus-

The State.

Mr. Sujit Chatterjee, DAG with

Ms. Farhana Afroze Runa, A. A. G

Mr. Abdul Aziz Masud, A. A. G.

Md. Shamim Khan, A. A. G

..... For the State.

Mr. S.M. Shafiqul Islam, The State Defence Lawyer.

Mr. Md. Murad Sarwar Bhuiyan, Advocate.

.....for the Appellant.

(In Jail Appeal No.364 of 2017)

Heard on: 29.11.2023, 30.11.2023 and

Judgment on: 07.12.2023.

S M Kuddus Zaman,J:

This Death Reference under section 374 of the Code of
Criminal Procedure, 1898 (hereinafter referred to as the Code) has

been submitted by the learned Sessions Judge, Rangpur for confirmation of the sentence of death inflicted against accused Md. Elias Ali in Sessions Case No.501 of 2015 arising out of Mithapukur Police Station Case No.34 dated 18.07.2014 corresponding to G. R. Case No.347 of 2014 under section 302 of the Penal Code, 1860 on 22.08.2017.

Being aggrieved by above judgment and order of conviction and sentence dated 22.08.2017 passed by the learned Sessions Judge, Rangpur in Sessions Case No.501 of 2015 under section 302 of the Penal Code, 1860 above Condemned accused Md. Elias Ali has preferred Jail Appeal No.364 of 2017.

Above Death Reference and Jail Appeal having arisen out of the identical judgment and order of conviction and sentence dated 22.08.2017 passed by the learned Sessions Judge, Rangpur in Sessions Case No.501 of 2015 arising out of Mithapukur Police Station Case No.34 dated 18.07.2014 corresponding to G. R. Case No.347 of 2014 both above Death Reference and Jail Appeal are heard together and being disposed of by this single judgment.

Facts in short are that on 10.07.2014 at 23:45 hours Journalist Md. Halim Mondal informed the Officer-in-charge of the Mitapukur Police Station over mobile telephone that accused Md. Elias Ali had

murdered his two wives by axe blows and local people had apprehended above accused.

On the basis of above information Sub-inspector Md. Robiul Alam along with his accompanying force went to the occurrence place and came to know that due to quarrel over family affairs accused Elias murdered his second wife Moksuda Begum in his bedroom by repeated axe blows. The first wife of accused Elias victim Momena raised alarms and went out of the occurrence house to call out local people. Accused Elias chased and murdered her in the courtyard of Saidul Islam by repeated axe blows. The police received custody of accused Elias from the local people. Sub-inspector Md. Ershadul Haque entered G.D.E. No.430 on 10.07.2014 and prepared inquest reports of above two dead bodies and forwarded the dead bodies of victim Moksuda and Momena for post mortem examination. After post mortem examination above dead bodies were handed over to their respective relatives. Accused Elias was arrested under section 54 of the Code of Criminal Procedure. Stating above facts Inspector of police Md. Nazrul Islam lodged ejahar of this case.

The investigation of the case was assigned to P.W.16 Md. Ershadul Haque who in course of investigation visited the places of occurrence, prepared two sketch maps along with indexes thereof,

seized alamots and recorded statement of witnesses under section 161 of the Code of Criminal Procedure. In above investigation offence punishable under section 302 of the Penal Code having prima-facie proved against accused Elias he submitted charge sheet No.586 dated 18.12.2014 against him.

At trial prosecution examined 16(sixteen) witnesses who were cross-examined by the State appointed defence Advocate for accused Md. Elias Ali. Documents and materials produced and proved by the prosecution were marked as Exhibit No.1 to 13 series.

The defence version of the case is that accused Elias found victim Moksuda Begum in a compromised position in bed with one Kuddus Master. He lost mental balance and struck axe blows on above Kuddus Mastr which mistakenly hit Moksuda and caused her death. Victim Momena chased above Kuddus Master and she was murdered by the men of above Kuddus Master.

As mentioned above to bring home the charge leveled against accused Md. Elias Ali the prosecution has examined 16(sixteen) witnesses.

P.W.1 Md. Nazrul Islam, is the Inspector of police and informant of this case. He stated that on 10.07.2014 at 23:45 hours Journalist Md. Halim Mondal informed the Officer-in-charge of the police station that accused Md. Elias Ali had murdered his two

wives. One wife was murdered in his house and another wife was murdered in the courtyard of another house by axe blows and local people had apprehended Elias Ali. He accompanied the Officer-in-charge, namely, Md. Robiul Alam to the place of occurrence and came to know that due to family quarrel accused Md. Elias Ali murdered his second wife Moksuda on 10.07.2014 at 22:30 hours in the bed of his east viti ghor by axe blows on head. Seeing above occurrence his first wife victim Momena raised alarms and went out of the occurrence house to call in local people and accused Md. Elias Ali chased and murdered her in the courtyard of Saidul Islam by axe blows on the back side of head. P.W.16 Sub-inspector Md. Ershadul Haque performed inquest of above two dead bodies and prepared inquest reports and forwarded above two dead bodies for post mortem examination to Rangpur Medical College Hospital. The relatives of above two victims were asked orally and by issuance of notice to lodge an Ejahar for above occurrence but they did not. As such he as informant lodged Ejahar of this case on 18.07.2014. The witness proved the ejahar and his signature on the same which were marked as exhibit-1 and 1/1 respectively. The FIR form was filled up by Officer-in-charge Md. Robiul Islam and the witness proved the FIR form and signature of Md. Robiul Islam which were marked as exhibit-2, 2/1 and 2/2 respectively.

In cross-examination he stated that he came to know from the occurrence place that above two murders were occurred due to family quarrel but he was unable to say specifically anything about above quarrel. He denied that victim Moksuda had an extra marital relation with one Kuddus Master and accused Md. Elias Ali found him in bed with victim Moksuda in an objectionable condition and then accused Md. Elias Ali lost mental balance and struck axe blows causing death of Moksuda. He further denied that victim Momena was murdered by the people of above Kuddus Master and due to above an extra marital relation of victim Moksuda her relatives did not come to file any case against accused Md. Elias Ali. He lastly stated that journalist Md. Halim Mondal and neighbour Saiful Islam informed him about above occurrence. Accused Md. Elias Ali was arrested by the people of the locality.

P.W.2 Hazi Md. Naya Miah stated that hearing hue and cry he went to the house of accused Elias and saw two dead bodies of his two wives. The people of the village arrested accused Elias and police came to the occurrence place and took accused Elias along with axe to the police station. In cross-examination he stated that he did not see any quarrel or the occurrence.

P.W.3 Md. Alamgir is a neighbour of accused Elias who stated that hearing alarms he went to the house of accused Elias in the

month of July-2014 at 10:30 p.m. and saw the dead bodies of his two wives. One dead body was inside the ghar and another dead body was in the courtyard and local people apprehended accused Elias. In cross-examination he stated that he did not see the occurrence. He does not know if accused Elias saw victim Moksuda in a compromised position in the bed with Kuddus Master and loosing mental balance accused Elias struck axe blows on above Kuddus Master but Kuddus Master fled away and the axe hit his wife Moksuda causing her death or the men of above Kuddus Master murdered victim Momena with dagger blows.

P.W.4 Md. Saidul Haque is another neighbour of accused Elias who stated that on 10.07.2014 at 10:30 p.m. accused Elias murdered his two wives by axe blows and he and others apprehended accused Elias along with an axe. Police prepared inquest reports of above two dead bodies of victim Moksuda and Momena and he gave signatures on those two reports. The witness proved the inquest reports and his signatures on the same which were marked as Exhibit-3, 3/1, 4 and 4/1 respectively. He lastly stated that police recovered the blood stained axe from the house of accused Elias and seized the same by a seizure list. He gave signature as a witness in above seizure list. The witness proved above seizure list and his signature on the same which were marked as Exhibit No.5 and 5/1

respectively. In cross-examination he stated that he did not see accused Elias struck axe blows on his wives.

P.W.5 Md. Moklechur Rahman is the brother-in-law of accused Elias and brother of victim Momena. He heard that accused Elias murdered his sister Momena and his another wife. Police prepared inquest reports of above two dead bodies and he gave signatures on the same as a witness. The witness proved his signatures on above two inquest reports which were marked as Exhibit No.3/2, 4/2 respectively. Accused Elias murdered his sister by axe blows and police seized above blood stained axe by a seizure list and he gave signature on the same as a witness. The witness proved his signature on above seizure list which was marked as Exhibit-5/2. He saw accused Elias in the custody of the police. In cross-examination he stated that he did not see the axe.

P.W.6 Latifa Begum is a witness of two inquest reports of the dead bodies of victim Moksuda and Momena. The witness saw above dead bodies in the house of accused Elias. She proved her signatures on two inquest reports which were marked as exhibit-3/3 and 4/3 respectively. In cross-examination she stated that she did not see the occurrence.

P.W.7 Md. Syed Ali is the brother of victim Momena. He stated that he heard that accused Elias murdered his sister Momena

and his another wife by axe blows. In cross-examination he stated that he did not see the occurrence nor he visited the place of occurrence.

P.W.8 Mokchedul stated that on hearing that accused Elias has murdered his two wives he went to the house of accused Elias and in his presence police prepared inquest reports of above two dead bodies and he gave signatures on above reports. The witness proved his signatures on two inquest reports which were marked as Exhibit-3/4 and 4/4 respectively. In cross-examination he stated that he did not see the occurrence.

P.W.9 Majeda Begum is another witness of two inquest reports. She stated that she saw one dead body inside the ghar of Elias and the other dead body out of the ghar. Police prepared inquest reports of above two dead bodies in her presence and she gave signatures as a witness in both the reports. The witness proved her signatures on two inquest reports which were marked as Exhibit-3/5 and 4/5 respectively. In cross-examination she stated that she did not see the occurrence nor she knows why accused Elias murdered his wives.

P.W.10 Md. Bahar Uddin, Sub-inspector of police accompanied the officer-in-charge Robiul Alam to the place of occurrence on 10.07.2014. He stated that at 12:00 O'clock in the

night they went to the house of accused Elias and saw the dead bodies of his two wives namely Moksuda and Momena. The dead body of Momena was in the courtyard of Saiful and that of the Moksuda was in the dwelling house of accused Elias. In cross-examination he stated that the inquest reports of above two dead bodies were prepared after 12:00 O'clock.

P.W.11 Dr. Horendronath Goshami performed post mortem examination of dead bodies of victim Moksuda and Momena.

He found following injuries on the person of victim Momena:

1) One incised injury situated over the Left side of occipital region of about 2'' x 1'' x 1'' in size.

2) One incised injury situated over the middle of occipital region of about 1'' x 1'' x 1'' in size.

3) Lacerated injury situated over the right temporal region of about 2'' x 1'' x 1'' in size.

4) Swelling situated over the middle of forehead of about 3'' x 2'' in size.

In his opinion death was due to haemorrhage and shock as a result of above head injuries which were antemortem and homicidal in nature.

The witness proved above post mortem report and his signature on the same which was marked as Exhibit-6 and 6/1 respectively.

He found following injuries on the person of victim Moksuda:

1) One incised injury situated over the left parital frontal region with exposure of brain tissue of about 3'' x 2'' x 2'' in size.

2) Five incised injuries situated over the forehead of various shap and size.

In his opinion death was due to intracranial haemorrhage and shock as a result of above mentioned injuries which were antemortem and homicidal in nature.

The witness proved above post mortem reports and the signatures of the same which were marked as Exhibit-7 and 7/1 respectively. In cross-examination he denied that there was no similarity of his post mortem reports with the inquest reports of dead bodies of victim Moksuda and Momena and he did not perform port mortem examination of above dead bodies properly.

P.W.12 Md. Shahadat Hossain was a constable of police who transported the dead bodies of victim Moksuda and Momena to the Rangpur Medical College Hospital for port mortem examination. In cross-examination he stated that he did not visit the occurrence place nor he knows anything about the cause of above murders.

P.W.13 Motaleb is the uncle of victim Moksuda who stated that he did not see the occurrence nor he can recollect the date of the occurrence. Hearing of the occurrence he went to the house of accused Elias and saw the dead body of Moksuda inside the ghar of accused Elias. He saw the dead body of Momena about 200 yards away from the house of accused Elias. He saw accused Elias in the custody of the police. In cross-examination he stated that his house is about 6 Kilometers away from the house of accused Elias.

P.W.14 Nawshad Ali is the father of victim Moksuda who stated that about three years ago on hearing that accused Elias had murdered Moksuda he went to the place of occurrence and saw accused Elias in police custody. He saw the dead body of his daughter Moksuda in the ghar of accused Elias. He also saw the dead body of victim Momena. Police asked him to file a case for above occurrence but he did not lodge any case since he was a poor day laborer. In cross-examination he denied that due to extra marital relation of Moksuda with Kuddus Master accused Elias struck axe blows on Kuddus Master but that blow hit her daughter and caused her death.

P.W.15 Md. Shah Alam is a seizure list witness who stated that in his presence police recovered and seized the blood stained axe from the occurrence place and he gave signature as witness in the

above seizure list. The witness proved his signature on the seizure list which was marked as Exhibit-5/3. In cross-examination he stated that he did not see the occurrence. He denied that seeing the extra marital relation scene of Moksuda with her lover accused Elias struck axe blows to kill above lover but the blow hit victim Moksuda and caused her death.

P.W.16 Md. Ershadul Haque is the investigating officer of this case who stated that on 18.07.2014 police inspector Md. Nazrul Islam lodged ejahar of this case and he accompanied the officer-in-charge to the house of accused Elias on 10.07.2014 at 11:45 p.m. and saw two dead bodies of two women. The dead body of victim Moksuda was lying on a cot in the bedroom of accused Elias and the dead body of victim Momena was about 50 yards away in the courtyard of Saidul Haque. On the order of the officer-in-charge he prepared inquest reports of above two dead bodies. He found injuries on the left side of head of victim Moksuda caused by a sharp weapon and another cut injury on her forehead. He found an injury on the left side of head of victim Momena caused by a sharp weapon and hematoma on her forehead. The witness proved his signatures on two inquest reports of victim Moksuda and Momena which were marked as Exhibit-3/6 and 4/6 respectively. He forwarded above two dead bodies by two separate chalans to the Rangpur Medical College

Hospital for post mortem examination. The witness proved above two chalans and his signatures on above documents which were marked as Exhibit-8, 8/1, 9, and 9/1 respectively. Accused Elias was apprehended by the local people and they recovered the blood stained axe from inside the house of accused Elias. He seized above axe by dint of a seizure list. The witness proved his signature on above seizure list and indentified the seized axe which were marked as Exhibit-5/4 and Materials Exhibit No.-I respectively. They arrested accused Elias on 11.07.2014 under section 54 of the Cod of Criminal Procedure and forwarded him to court. On 11.07.2014 he seized the wearing apparels of above two dead bodies by a seizure list. The witness proved above seizure list and his signature on the same which were marked as Exhibit-10 and 10/1 respectively. The witness also proved a part of the seized wearing apparels which was marked as Materials Exhibit No.II. Above two dead bodies of Moksuda and Momena were handed over to their relatives on 11.07.2014 night for burial and they asked P.W.13 Motaleb the uncle of Moksuda and P.W.7 Syed Ali, brother of victim Momena to lodge a case for above murders but they declined. As such police Inspector Nazrul Islam as informant lodged ejahar of this case on 18.07.2014. In course of investigation he visited two occurrence places on 19.07.2014 and prepared separate sketch maps along with indexes

thereof. The witness proved above sketch maps and indexes and his signatures on above documents which were marked as Exhibit No.- 11, 11/1, 12 and 12/1 respectively. He recorded statements of two witnesses under section 161 of the Code of Criminal Procedure and submitted a petition to the court to acquit accused Elias from the case under section 54 and show him arrested in this case. Above petition was allowed on 20.07.2014. The witness proved a copy of above order of court which was marked as Exhibit-13. He recorded statements of another 10 witnesses under 161 of the Code of Criminal Procedure and in above investigation offence punishable under section 302 of the Penal Code having prima-facie proved against accused Elias he submitted charge sheet No.586 dated 18.12.2014 against him. In cross-examination he stated that he does not know why the relatives of two victims Moksuda and Momena did not lodge an ejahar for above occurrence of murders. He denied that victim Moksuda having murdered for her extra marital relation his relatives refused to file any case. He did not seize any blood stained mud from the place where victim Momena was murdered. He did not seize any alamot from the courtyard of Saidul. He seized the wearing apparels of the victim sitting in the police station. He did not make any endeavour for examination of the finger print on the handle of the seized axe. He denied that accused Elias found his wife

Moksuda in the bed with Kuddus Master and he struck axe blows on Kuddus Master but he fled away and the blows struck victim Moksuda causing her death and victim Momena chased above Kuddus Master and the men of above Kuddus Master murdered her.

Above is all about the evidence oral and documentary adduced by the prosecution in this case to bring home the charge leveled against accused Elias under section 302 of the Penal Code, 1860.

Mr. Sujit Chatterjee learned Deputy Attorney General for the State submits that two wives namely, Moksuda and Momena of accused Elias were murdered brutally by repeated axe blows on head. Victim Moksuda was murdered in the bedroom of accused Elias and he chased and murdered Moksuda by the same axe blows in the courtyard of Saidul. The relationship of husband and wives between accused Elias and victims Moksuda and Momena is not disputed. As such, if accused Elias was not involved in the commission of above murders he would have rushed to the police station to lodge a case against the assailants. But instead he attempted to flee from the occurrence house and he was apprehended by the local people and handed over to police. The murder of victim Moksuda having committed in the bedroom of accused Elias as a husband accused Elias was legally required to provide a reasonable explanation as to how his wife met with her unnatural death.

Accused Elias did not provide any explanation but confessed to have committed above murders at the time of framing of charge by the trial court. The blood stained axe which was the sole weapon used in the commission of above murders was seized from the house of accused Elias. All above circumstantial, documentary and oral evidence of competent witnesses proved beyond reasonable doubt that accused Elias committed murders of his wives Moksuda and Momena on 10.07.2014 at 10:30 hours by repeated axe blows. On consideration of above materials on record the learned Session Judge has rightly convicted accused Elias under section 302 of the Penal Code which calls for no interference.

On the other hand, Mr. S.M. Shafiqul Islam, the State appointed learned Advocate for condemned accused Md. Elias Ali submits that the occurrence took place on 10.07.2014 at 10:30 hours and police rushed to the occurrence place within two hours and inquest reports of above two dead bodies were prepared within next two hours but the FIR of this case was lodged after about eight days on 18.07.2014 at 17:15 hours. There is no explanation as to above inordinate delay in the lodging of ejahar of this case. The dead body of Moksuda was received by her uncle P.W.13 Motaleb and the dead body of Momena was received by her brother P.W.7 Syed Ali on 11.07.2014 but they did not lodge any ejahar over above murders.

The father of victim Moksuda namely, Md. Nawshad Ali gave evidence as P.W.14 but he could not give any reasonable explanation as to why he did not lodge ejahar of this case. It has been claimed by the prosecution that victim Momena was murdered in the courtyard of neighbour Saidul. But above Saidul was not examined as a prosecution witness nor journalist Md. Halim Mondal who was the first informant of this case was examined by the prosecution. In this case there is no eye witness of the occurrence and the prosecution has failed to prove the charge leveled against accused Elias by legal evidence. The learned Sessions Judge totally failed to appreciate above aspects of the case properly and most illegally convicted accused Elias Ali on the basis of conjecture and surmise which is not tenable in law.

Mr. Md. Murad Sarwar Bhuiyan, the learned Advocate appointed by the Legal Aid Committee to defend accused appellant Elias Ali submits that in this case the accused has allegedly confessed his guilt to the trial court. The accused is a poor and illiterate person. It is not understandable as to why his confession was not recorded by the prosecution under section 164 of the Code of Criminal Procedure. Two wives of accused Elias who were murdered had close relatives such as father, brother and uncle but they did not lodge any case. Above behaviour of the relatives of the

victims is suspicious and unusual. None examination of Saidul and journalist Halim Mondal made the prosecution case more suspicious and not believable. The prosecution has tried to hide important facts which are clear from the materials on record. The learned Session Judge has failed to appreciate that the prosecution case suffers from a numerous flaws due to non production of the GDE No.430 dated 17.07.2014 and non examination of competent witnesses at trial and most illegally convicted accused Elias under section 302 of the Penal Code, 1860 which is not tenable in law.

We have considered the submissions made by the learned Advocates for the respective parties and carefully examined all materials on record including the FIR, charge sheet, seizure list, inquest reports, post mortem reports, oral evidence of 16 prosecution witnesses, exhibited documents and other materials on record.

The dead bodies of victims Maksuda and Momena were transported to Rangpur Medical College Hospital for port mortem examination by police constable Shahadat and the post mortem examination of above two dead bodies were performed by P.W.11 Dr. Horendra Nath Goshmi. Dr. Goshami found following injuries on the person of victims Momena:

1) One incised injury situated over the Left side of occipital region of about 2'' x 1'' x 1'' in size. 2) One incised injury situated

over the middle of occipital region of about 1'' x 1'' x 1'' in size. 3) Lacerated injury situated over the right temporal region of about 2'' x 1'' x 1'' in size. 4) Swelling situated over the middle of forehead of about 3'' x 2'' in size. In his opinion death of victim Momena was caused due to above head injuries which were anti-mortem and homicidal in nature.

Dr. Goshami found following injuries on the person of victim Maksuda:

- 1) One incised injury situated over the left parital frontal region with exposure of brain tissue of about 3'' x 2'' x 2'' in size.
- 2) Five incised injuries situated over the forehead of various shap and size. In his opinion death of victim Maksuda was due to intracranial haemorrhage and shock as a result of above mentioned injuries which were anti-mortem and homicidal in nature. P.W.11

Dr. Horendra Nath Goshsmi proved the post mortem reports of victim Momena and Maksuda and his signatures on above two documents which were marked as Exhbit No.6, 6/1, 7 and 7/1 respectively. He lastly stated that his above findings are consistent with the findings made by P.W.16 Md. Ershadul Haque in the inquest reports. P.W.16 Ersadul Haque has stated in his evidence that he found multiple head injuries on the persons of victim Maksuda and Momena caused by sharp cutting weapon. P.W.11 Dr. Horendra

was subjected to cross-examination but his evidence remained unshaken, consistent and credence inspiring. The defence did not cross examination P.W.16 Ershadul as to his above evidence.

On consideration of above documentary evidences (the post mortem reports and inquest reports and Exhibit No.3,4,6 and 7 respectively) and oral evidence of competent witnesses we hold that the prosecution has succeeded to prove by legal evidence that victims Moksuda and Momena were murdered by inflicting grievous head injuries by sharp cutting weapon.

P.W.16 Md. Ershadul Haque Sub-inspector of police rushed to the occurrence place on 10.07.2014 at 11:45 p.m. and he found the dead body of Moksuda lying on a cot in the bedroom of accused Elias Ali and dead body of victim Momena in the courtyard of Saidul Haque. He performed inquests of above two dead bodies in above two places in presence of P.W.4 Md. Saidul Haque, P.W.6 Latifa Begum, P.W.8 Mokchedul, P.W.9 Majeda Begum, and P.W.15 Md. Shah Alam who were the witnesses of above two inquest reports.

But P.W.6 Latifa Begum stated that she saw both the dead bodies of victims Moksuda and Momena in the house of accused Elias. P.W.4 Saidul Haque did not make specific mention as to the place where he saw two dead bodies of above victims. P.W.9 Majeda

Begum stated that she saw one dead body inside the ghar and the another dead body outside of the ghar. She did not mention the name of the victim whose dead body she saw inside the ghar. P.W.15 Md. Shah Alam stated that he saw the dead body of victim Moksuda inside the ghar and that of victim Momena in the courtyard. P.W.8 Mokchedul stated that he saw the dead bodies in the house of accused Elias. As such not a single witnesses of the inquest reports supported the prosecution case that the dead body of victim Moksuda was lying on the cot in the bedroom of accused Elias and the dead body of victim Momena was in the courtyard of Saidul.

The gruesome murders of two women namely Moksuda and Momena the wives of accused Elias occurred at 10:30 p.m. on 10.07.2014 and P.W.16 Ersadul along with the officer-in-charge and other police personal rushed to the above occurrence place within 1 hour 15 minute. The inquest reports of two dead bodies were prepared within next 2 hours but the ejahar of this case was lodged after a long delay of more than 7 days. We are unable to find any reasonable cause as to why police allowed above delay in the lodging of the ejahar. Secondly the dead body of Maksuda was handed over after conclusion of post mortem examination to her uncle P.W.13 Motaleb and the dead body of victim Momena was handed over to her brother P.W.7 Syed Ali on 11.07.2014. P.W.14

Nawshad Ali is the father of victim Moksuda and he was approached by police to lodge a case on 11.07.2014 but he did not. It is highly unusual that the father of the daughter who was brutally murdered had refused to lodge an ejahar over above murder of his daughter due to want of money. The lodging of an ejahar does not require any money specially when the police was asking him to lodge the same and when accused Elias was not a rich or an influential person.

The learned Session Judge framed charge against the accused Elias on 11.11.2015 under section 302 of the Penal Code, 1860 for committing murder of victim Moksuda in his bedroom on 10.07.2014 at 10:30 p.m. and murder of victim Momena in the courtyard of Saidul. Accused Elias accepted above charge and confessed to have murdered both his wives. It is not understandable as to why this poor and illiterate accused was not produced before a Judicial Magistrate for recording his confession under section 164 of the Code of Criminal Procedure.

It turns out from the statement made by accused Elias under section 342 of the Code of Criminal Procedure that he provided a different version as to the cause and manner of murders of his two wives. He stated that he found his wife Moksuda in bed with one Kuddus Master in a highly objectionable condition and he lost his psychological balance and struck axe blows causing death of victim

Moksuda. Accused Elias did not mention whether above bed was in his house or in the house of above mentioned Kuddus Master. The learned Advocate for accused Elias stated that accused Elias struck the axe blow on Kuddus Master but above Kuddus Master fled away and the blow hit victim Moksuda.

This case was initiated on the basis of information of journalist Halim Mondal as has been mentioned in the FIR and in the evidence of P.W.1 Nazrul Islam. But above Halim Mondal was not examined by the prosecution at trial. It has been alleged that the occurrence of murder of victim Momena occurred in the courtyard of Saidul but above Saidul was not examined by the prosecution at trial. The prosecution did not provide any explanation as to non examination of above two important and competent witnesses. As such we are constrained to draw an adverse presumption under section 114(g) of the Evidence Act, 1872 to the effect that had those two witnesses been examined at trial they would not have supported the prosecution version of the case.

P.W.16 Ershadul Haque the investigating officer of this case stated in cross-examination that he did not seize any blood stained mud from the courtyard of Saidul where the murder of victim Momena was allegedly occurred. As far as the commission of murder of victim Moksuda is concerned it is the case of the

prosecution that she was murdered on the bed in the bedroom of accused Elias. The investigating officer did not seize any alamot namely blood stained bed sheet, mattress or pillow to prove that the murder of victim Moksuda occurred in the bedroom of accused Elias. The prosecution claims that above murders occurred due to a family quarrel. It is not understandable as to how a wife while quarreling with her husband could go to the bed.

In this case there is no eye witness who saw the occurrence of murders of victim Moksuda and Momena. Accused Elias did not make any confession under section 164 of the Code of Criminal Procedure. In view of above materials on record we hold that the prosecution has measurably failed to prove by legal evidence that victim Maksuda was murdered in the bedroom of accused Elias and victim Momena was murdered in the courtyard of Saidul. The prosecution has failed to prove the alleged places of occurrence of murders by legal evidence.

It has been alleged that after commission of above murders accused Elias was about to flee and he was arrested by the local people and handed over to the police. But the prosecution could not examine a single witness who participated in the alleged arrest of accused Elias and handed him over the police.

It is true that an axe was seized by the P.W.16 Md. Ershadul Haque by Exhibit-5 but he did not recover the same from the possession of accused Elias. Nor he examined the finger print on the handle of above axe. Exhibit No.5 shows that above axe was seized from the dwelling house of accused Elias. It is the prosecution case that accused Elias committed last murder of victim Momena using above axe in the courtyard of Saidul and thereafter he attempted to flee but he was arrested by local people. It is not understandable as to how above axe came into the house of accused Elias.

Learned Deputy Attorney General submits that accused Elias was the husband of victim Moksuda and she was murdered in his bedroom as such accused Elias was required to explain as to how his wife was murdered and in the event of his failure to provide a reasonable explanation he would be held responsible for above murder.

We could endorse above submissions of the learned Deputy Attorney General had the prosecution succeeded to prove that victim Moksuda was murdered in the bedroom of accused Elias and at the time of above occurrence accused Elias was present in his house. We have found above that the prosecution could not prove by legal evidence that the murder of victim Moksuda took place in the bedroom of accused Elias by legal evidence.

As far as the murder of victim Momena is concerned the prosecution has measurably failed to prove that she was murdered by accused Elias by axe blows on head in the courtyard of Saidul by any legal evidence.

In fact this is case of no legal evidence as far as the complicity of accused Elias is concerned in the commission of murders of his two wives, namely Maksuda and Momena but the learned Session Judge has most illegally shifted the onus on accused Elias on the premise that the murders were committed in the house of the accused Elias and in his presence which is not tenable in law. The prosecution has failed to prove the charge leveled against accused Elias under section 302 of the Penal Code, 1860 beyond reasonable doubt.

In above view of the materials on record we are unable to find any substance in this Death Reference which is liable to be rejected and we find substance in Jail Appeal No.364 of 2017 which deserves to be allowed.

In the result, Death Reference No.118 of 2017 submitted by the learned Sessions Judge, Rangpur for confirmation of sentence of death imposed against accused Md. Elias Ali in Sessions Case No.501 of 2015 arising out of Mithapukur Police Station Case No.34 dated 18.07.2014 corresponding to G. R. Case No.347 of 2014 is

rejected and Jail Appeal No.364 of 2017 preferred by accused Elias against above judgment and order of conviction and sentence is allowed.

The impugned judgment and order of conviction and sentence of death dated 22.08.2017 passed by the learned Sessions Judge, Rangpur in Sessions Case No.501 of 2015 arising out of Mithapukur Police Station Case No.34 dated 18.07.2014 corresponding to G. R. Case No.347 of 2014 under section 302 of the Penal Code, 1860 is set aside and accused Elias is acquitted of the charge leveled against him under section 302 of the Penal Code, 1860.

Let accused Md. Elias Ali be set at liberty at once if he is not wanted in connection with any other case.

Let the lower court's record along with a copy of this judgment be transmitted down at once.

Md. Aminul Islam,J:

I agree.

Md. Abadul Haque/Bench Officer.